



Bill Number: H.B. 2114

Epstein Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies ADOT may renew a registration for a motorcycle only if at least one of the registered owners of the motorcycle is licensed to legally operate a motorcycle in Arizona.
2. Stipulates that, if the registered owner of a motorcycle is a trust, a trustee named in the trust must be legally licensed to operate a motorcycle to renew a registration.
3. Applies the prescribed requirements only to motorcycle registration renewals, rather than to initial issuances of registrations and renewals.
4. Exempts motorcycles owned by a business from prescribed requirements.
5. Contains a delayed effective date of January 1, 2027.

EPSTEIN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2114
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-2010, Arizona Revised Statutes, is amended to
3 read:

4 28-2010. Motorcycle safety fund; administration

5 A. The motorcycle safety fund is established consisting of monies
6 deposited pursuant to subsection B of this section and monies from gifts,
7 grants and other donations. The director of the governor's office of
8 highway safety shall administer the fund. On notice from the director of
9 the governor's office of highway safety, the state treasurer shall invest
10 and divest monies in the fund as provided in section 35-313, and monies
11 earned from investment shall be credited to the fund. Up to ten percent
12 of the monies in the fund may be used for administrative costs. Monies in
13 the fund are subject to legislative appropriation and are exempt from the
14 provisions of section 35-190 relating to lapsing of appropriations.

15 B. Notwithstanding section 28-2004, the director of the department
16 of transportation shall deposit, pursuant to sections 35-146 and 35-147,
17 \$1 of each motorcycle registration fee collected pursuant to section
18 28-2003 in the motorcycle safety fund.

19 C. Subject to legislative appropriation, the director of the
20 governor's office of highway safety shall use monies deposited in the
21 motorcycle safety fund pursuant to this section FOR THE FOLLOWING
22 PURPOSES:

23 1. UP TO SEVENTY-FIVE PERCENT to implement and support voluntary
24 motorcycle education, awareness, training and other programs and may use
25 the monies to cover the cost of materials for motorcycle safety, education
26 and awareness programs.

27 2. UP TO TWENTY-FIVE PERCENT FOR SCHOLARSHIPS FOR MOTORCYCLE DRIVER
28 EDUCATION PROGRAMS FOR PERSONS WHO ARE FROM RURAL OR LOW-INCOME AREAS IN
29 THIS STATE TO INCREASE ACCESS TO MOTORCYCLE TRAINING PROGRAMS.

1 D. Any fee, assessment or other levy that is authorized by law or
2 administrative rule and that is collected and deposited in the motorcycle
3 safety fund shall be held in trust. The monies in the fund may be used
4 only for the purposes prescribed by statute and may not be appropriated or
5 transferred by the legislature to fund the general operations of this
6 state or to otherwise meet the obligations of the general fund of this
7 state. This subsection does not apply to any taxes or other levies that
8 are imposed pursuant to title 42 or 43.

9 Sec. 2. Title 28, chapter 7, article 1, Arizona Revised Statutes,
10 is amended by adding section 28-2014, to read:

11 28-2014. Motorcycle registration; requirements

12 THE DEPARTMENT MAY ~~[ISSUE OR]~~ RENEW A REGISTRATION FOR A MOTORCYCLE
13 ONLY IF AT LEAST ONE OF THE REGISTERED OWNERS OF THE MOTORCYCLE ~~[HAS A~~
14 ~~CLASS M DRIVER LICENSE ISSUED PURSUANT TO SECTION 28-3171.]~~ [IS LICENSED
15 TO LEGALLY OPERATE A MOTORCYCLE IN THIS STATE.] EXCEPT THE DEPARTMENT MAY
16 ISSUE A THIRTY-DAY TEMPORARY REGISTRATION IF THE PERSON SHOWS VALID PROOF
17 OF ENROLLMENT IN A MOTORCYCLE TRAINING PROGRAM APPROVED BY THE
18 DEPARTMENT. [IF THE REGISTERED OWNER OF A MOTORCYCLE IS A TRUST, A
19 TRUSTEE NAMED IN THE TRUST MUST BE LEGALLY LICENSED TO OPERATE A
20 MOTORCYCLE TO RENEW A REGISTRATION PURSUANT TO THIS SECTION. THIS SECTION
21 DOES NOT APPLY TO A MOTORCYCLE THAT IS OWNED BY A BUSINESS.]

22 <<Sec. 3. Effective date

23 [This act is effective from and after December 31, 2026.]>>

24 Enroll and engross to conform

25 Amend title to conform

DENISE "MITZI" EPSTEIN

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06/10/2026

06:10 PM

C: JR

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